

OFFICE OF THE SECRETARY

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July 7, 2021

The Honorable Robert W. Weir
Judge of the Superior Court
County of Del Norte
450 "H" Street
Crescent City, CA 95531

Re: Tracy Jay Scott
CDCR No: E92150
Case No: 97-175-X
Date of Sentence: January 8, 1998

Dear Honorable Robert W. Weir:

The purpose of this letter is to provide the court with the authority to resentence inmate Tracy J. Scott, E92150 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Scott has received ten Rules Violation Reports but has remained disciplinary free since September of 2001. Inmate Scott is currently works as an Associate Warden's Clerk, and is assigned to multiple substance abuse programs, the Offender Narrative Project, a Batterer's Intervention Program, New Options for Wellness, and the Juvenile Diversion Program. His supervisors notes that his work has been exceptional. He is well behaved and has rehabilitated himself to the point that he is not a threat to return to society. Inmate Scott has received numerous certificates and laudatory chronos from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

Scott has received numerous laudatory chronos from custodial staff of every rank documenting their belief that he has been rehabilitated and is ready for his return to society. Inmate Scott met the standards of the General Educational Development and received his High School Equivalency Certificate at Mule Creek State Prison.

Having reviewed the enclosed documentation it appears that inmate Scott's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Darren McElfresh, Presiding Judge
Del Norte County District Attorney's Office
Del Norte County Public Defender's Office
